

115. Inquiry by railway administration. – Where no inquiry is held by the commissioner under Sub-section (1) of Sec. 114 or where the Commissioner has informed the railway administration under Sub-section (2) of that section that he is not able to hold an inquiry, the railway administration within whose jurisdiction the accident occurs, shall cause an inquiry to be made in accordance with the prescribed procedure.

Comments

Section 115 provides that in cases where the Commissioner does not hold an inquiry under Sec. 114 the same may be held by the railway administration.

116. Powers of Commissioner in relation to the enquiries. –(1) For the purpose of conducting an inquiry under this chapter into the causes of any accident on a railway, the Commissioner shall, in addition to the powers specified in sec. 7, have the powers as are vested in a civil court while trying a suit under the Code of Civil Procedure, 1908 (5 of 1908), in respect of the following matters, namely :-

- (a) Summoning and enforcing the attendance of persons and examining them on oath ;
- (b) Requiring the discovery and production of documents ;
- (c) Receiving evidence of affidavits ;
- (d) Requisitioning any public record or copies thereof from any court or office ;
- (e) Any other matter which may be prescribed.

(2) The Commissioner while conducting an enquiry under this Chapter shall be deemed to be a Civil Court for the purpose of Sec. And Chapter XXVI of the Code of Criminal Procedure, 1973(2 of 1974).

Comment

Section 116 empowers the commissioner with the powers of the Civil Court under the Code of Civil Procedure, 1908 (5 of 1908) in respect of the matters enumerated therein.

117. Statement made before Commissioner.- No statement made by a person in the course of giving evidence in an inquiry before the Commissioner shall subject him to, or be used against him in, any civil or criminal proceeding, except a prosecution for giving false evidence by such statement :

Provided that the statement is-

- (a) made in reply to a question which is required by the Commissioner to answer ; or
- (b) relevant to the subject-matter of the inquiry.

Comment

Section 117 protects the person against civil or criminal proceedings in respect or any evidence given by him in an inquiry before the Commissioner.

118. Procedure, etc. - Any railway administration or the Commissioner conducting an inquiry under this Chapter may send notice of the inquiry to such persons, follow such procedure, and prepare the report in such manner as may be prescribed.

Comment

Section 118 deals with the notice of the inquiry the procedure to be followed and the preparation of the report.

119. No inquiry, investigation, etc. to be made if the Commission of Inquiry is appointed. - Notwithstanding anything contained in the foregoing provisions of this Chapter, where a Commission of inquiry is appointed under the Commissions of Inquiry Act, 1952 (3 of 1952) to inquire into an accident, any inquiry, investigation or other proceeding pending in relation to that accident shall not be proceeded with, and all records or other documents relating to such inquiry shall be forwarded to such authority as may be specified by the Central Government in this behalf.

Comment

Section 119 provides that no inquiry or investigation to be made if the Commission of inquiry is appointed under the Commissions of Inquiry Act, 1952 to inquire into any accident, etc.

120.- Inquiry into accident not covered by Sec. 113.- Where any accident of the nature not specified in Sec. 113 occurs in the course of working a railway, the railway administration within whose jurisdiction the accident occurs, may cause such inquiry to be made into the causes of the accident, as may be prescribed.

Comment